

26STCV03153 26STCV03153

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-07-17

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C510%2C07%2F17%2F2026

Source SHA-256: 7f6815a78d6c44ec94e887422a9185da506862d0655e05467230e51ba192544c

Case Number: 26STCV03153 Hearing Date: July 17, 2026 Dept: 510

No. 10 - Dolores Marana v. Los

Angeles County Metropolitan Transportation Authority, et al.

Defendant Los Angeles County Metropolitan Transportation Authority's Demurrer to Plaintiff's Complaint

Defendant Los Angeles County Metropolitan Transportation

Authority ("LACMTA") demurs to the second and third causes of action alleged by

Plaintiff Dolores in her complaint. Plaintiff did not file an opposition.

As an initial matter, the Court notes that Plaintiff brought three causes of action against LACMTA for (1) motor vehicle negligence; (2) negligence; and (3) "liability for the wrongful act or omissions by public entity employees, Government Code section 815.2." While LACTMA's memorandum of points and authorities asks the Court to sustain the demurrer as to Plaintiff's first cause of action on the grounds that it is duplicative of the second cause of action, the Court cannot do this. LACMTA identified only the second and third causes of action in the demurrer itself. "Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses." (California Rule of Court, rule 3.1320(a).)

Second Cause of Action: Negligence

The second cause of action for negligence fails due to sovereign immunity. "[A]ll government tort liability must be based on statute." (County of San Bernardino v. Superior Court (2022) 77 Cal.App.5th 1100, 1107.) " [S]overeign immunity is the rule in California; governmental liability is limited to exceptions specifically set forth by

statute.’ ” (Id. at p. 1108.) Because LACMTA is a public entity, Plaintiff must provide a statutory basis for liability. She did not do so here.

The demurrer as to the second cause of action is sustained without leave to amend.

Third Cause of Action: Liability for the Wrongful Act or Omissions by Public Entity Employee – Gov’t Code § 815.2

Defendant argues that liability under Government Code section 815.2 is not a standalone cause of action, and does not provide a private right of action. The Court agrees. The statute provides: “A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” (Gov. Code, § 815.2(a) [emphasis added].) This statute codifies public entities’ vicarious liability under the “doctrine of respondeat superior.” (Mary M. v. City of Los Angeles (1991) 54 Cal.3d 202, 209.) LACMTA can thus only be held liable if its individual employees are liable.

While the title of the cause of action implies a violation of Government Code section 815.2 itself, the actual allegations repeat what appear under the negligence causes of action. “It has long been established that in ruling on a demurrer, the trial court is obligated to look past the form of a pleading to its substance. Erroneous or confusing labels attached by the inept pleader are to be ignored if the complaint pleads facts which would entitle the plaintiff to relief.” (Saunders v. Cariss (1990) 224 Cal.App.3d 905, 908.) Therefore, Court will treat this as a cause of action for negligence against LACMTA based on vicarious liability.

However, even so, Plaintiff does not allege sufficient facts. For negligence, a public entity employer can only be liable if its employees breached a common law duty of care to the plaintiff. (Hoff v. Vacaville Unified School Dist. (1998) 19 Cal.4th 925, 933.) The complaint does not allege LACMTA’s employees breached any duties owed to Plaintiff.

The demurrer as to the second cause of action is sustained with leave to amend.

Disposition

Defendant Los Angeles County Metropolitan Transportation

Authority's demurrer to Plaintiff's complaint is sustained without leave to amend as to the second cause of action and sustained with 21 days' leave to amend as to the third cause of action.